

SENATE BILL 1724

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 8; Title 29; Title 40 and Title 41, relative to
arrestees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-9-102, is amended by adding the following as a new subsection (b):

(b) This section does not apply to a jailer refusing an arrestee pursuant to § 41-4-145.

SECTION 2. Tennessee Code Annotated, Section 41-4-103(a)(7), is amended by deleting the subdivision and substituting:

(7) Except as provided in § 41-7-145, all other persons committed to the jail by authority of law.

SECTION 3. Tennessee Code Annotated, Title 41, Chapter 4, Part 1, is amended by adding the following as a new section:

41-4-145.

(a) A jailer may refuse to accept into the jail an arrestee if the arrestee:

(1) Requires medical attention; and

(2) Has been arrested for a misdemeanor that does not constitute a crime against a person, under title 39, chapter 13.

(b)

(1) If a jailer refuses to accept an arrestee into the jail pursuant to subsection (a), then the arresting agency must have the arrestee evaluated by a healthcare provider.

(2) If a healthcare provider furnishes the arresting agency with a release form specifying that the arrestee no longer requires medical attention or is medically able to be confined to a jail, then the jailer shall accept the arrestee into the jail.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.